

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO. 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS**

LLC, CLARENCE XANDER,

HEATHER GUNN, JANICE

HUGHES, DAKOTA THOMAS,

ELIAS VELASQUEZ and YUSEF

ABDUL-JAMI,

Defendants.

**DEFENDANTS’ RESPONSE IN OPPOSITION TO PLAINTIFF’S MOTION
FOR LEAVE TO FILE SEVENTH AMENDED COMPLAINT**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC (“Amentum”), CLARENCE XANDER (“Xander”), JANICE HUGHES (“Hughes”), HEATHER GUNN (“Gunn”), DAKOTA THOMAS (“Thomas”), ELIAS VELASQUEZ (“Velasquez”), and YUSEF ABDUL-JAMI (“Abdul-Jami”) (collectively, “Defendants”), file their Response in Opposition to Plaintiff’s Motion for Leave to File Seventh Amended Complaint.

I. INTRODUCTION

Since filing her initial Complaint on August 26, 2025, Plaintiff has had many bites at the apple to plead a viable claim against any one of the seven defendants she named in this lawsuit. Plaintiff, however, has not yet done so. A cursory review of the factual allegations in the proposed Seventh Amended Complaint (Doc. 55) leads to the clear conclusion that Plaintiff's allegations continue to miss the mark. Accordingly, Plaintiff's Motion for Leave to File Seventh Amended Complaint (Doc. 54) ("Motion") should be denied because Plaintiff has already been afforded multiple opportunities—no fewer than ten—to file an adequate complaint and has failed each time. Plaintiff has clearly demonstrated that she cannot cure the pleading deficiencies that should result in dismissal of her claims as a matter of law. Under these circumstances, further amendment would be futile. Defendants, therefore, request that the Court deny Plaintiff's Motion.

II. PROCEDURAL BACKGROUND

Defendants and the Court have afforded Plaintiff multiple opportunities to amend her claims since she filed the case seven months ago. Indeed, the Court entered multiple orders providing Plaintiff with guidance to correct pleading and other deficiencies in her claims. As demonstrated below, Defendants and the Court have more than met the obligation to afford Plaintiff the opportunity to amend and to account for her status as a *pro se* litigant.

Plaintiff filed her initial Complaint on August 26, 2025. (Doc. 1) The Court struck that Complaint as an impermissible shotgun pleading. (Doc. 4) Plaintiff then filed her First Amended Complaint on September 9, 2025. (Doc. 5) The Court again struck that pleading as both an impermissible shotgun pleading and violative of the page limits. (Doc. 6)

On September 22, 2025, Plaintiff filed a Second Amended Complaint. (Doc. 7) On September 23, 2025, a summons was issued as to the Second Amended Complaint (Doc. 9), and Defendants were subsequently served with the Second Amended Complaint. The undersigned counsel conferred with Plaintiff regarding Defendants' intent to file a motion to dismiss for failure to state a claim. On October 24, 2025, Plaintiff filed a Motion for Leave to File Third Amended Complaint together with the proposed Third Amended Complaint. (Docs. 16-17)

The Third Amended Complaint was deficient. The undersigned counsel conferred with Plaintiff and, on November 5, 2025, Plaintiff filed a Revised Third Amended Complaint. (Doc. 18) Although it was Defendants' position the Revised Third Amended Complaint failed to state any viable claim, Defendants notified the Court that they did not oppose Plaintiff's Motion for Leave with respect to the Revised Third Amended Complaint given the liberal standard generally applicable to motions for leave to amend the pleadings; however, Defendants notified the Court that they intended to file a motion to dismiss the claims in the Revised Third

Amended Complaint for failure to state a claim. (Doc. 19) The Court granted Plaintiff's Motion for Leave and allowed Plaintiff to file the Revised Third Amended Complaint on November 7, 2025. (Doc. 20)

The following day, November 8, 2025, Plaintiff notified the undersigned counsel that she intended to file a Supplemental Complaint adding an additional count. Plaintiff's Supplemental Complaint Adding Count XI – Retaliation for Protected Activity (Post-Deposition Termination) was filed on November 13, 2025. (Doc. 22) That same day, the Court struck Plaintiff's filing and directed Plaintiff to submit a Motion for Leave to file an amended pleading along with the proposed pleading. (Doc. 23)

On November 17, 2025, Plaintiff filed a Motion for Leave to File Fourth Amended Complaint and a proposed Fourth Amended Complaint. (Docs. 24-25) On November 24, 2025, Plaintiff filed a second Motion for Leave to File Fourth Amended Complaint and proposed Fourth Amended Complaint. (Docs. 26-27) As before, Defendants did not oppose Plaintiff's Motion for Leave with respect to the latest iteration of the Fourth Amended Complaint given the liberal standard generally applicable to motions for leave to amend the pleadings; however, Defendants notified the Court that they intended to file a motion to dismiss the claims in the Fourth Amended Complaint for failure to state a claim. The Court

granted Plaintiff's Motion on November 25, 2025 and accepted the Fourth Amended Complaint filed at Doc. 27. (Doc. 28)

On December 23, 2025, Defendants filed a Motion to Dismiss Fourth Amended Complaint and Incorporated Memorandum of Law. (Doc. 33) On December 31, 2025, Plaintiff filed a Motion for Leave to File Fifth Amended Complaint, along with a proposed Fifth Amended Complaint. (Docs. 37-38) On January 2, 2026, the Court directed Defendants to file their position regarding Plaintiff's Motion for Leave to File Fifth Amended Complaint. (Doc. 42) However, before Defendants submitted their response, Plaintiff informed the undersigned that she intended to file a Motion for Leave to File Sixth Amended Complaint. Consequently, on January 15, 2026, Defendants requested an extension of time to respond to the Motion for Leave to File Fifth Amended Complaint. (Doc. 44) The Court granted Defendants' request on January 16, 2026. (Doc. 45)

On January 20, 2026, Plaintiff filed a Motion for Leave to File Sixth Amended Complaint, along with the proposed Sixth Amended Complaint. (Docs. 46-47) On February 3, 2026, Defendants filed a Notice of Non-Opposition to Plaintiff's Motion for Leave to File Sixth Amended Complaint and Opposed Motion for an Extension of Time to Respond to Plaintiff's Sixth Amended Complaint (Doc. 49), citing the liberal standard governing amendments to pleadings; however, as before, Defendants notified the Court that they intended to file a motion to dismiss the

claims in the Sixth Amended Complaint for failure to state a claim. (Doc. 49) That same day, the Court granted Plaintiff's Motion for Leave to File Sixth Amended Complaint. (Doc. 50)

On February 24, 2026, Defendants filed a Motion to Dismiss Sixth Amended Complaint and Incorporated Memorandum of Law ("Motion to Dismiss"). (Doc. 52) On March 13, 2026, Plaintiff filed a Response in Opposition to Defendants' Motion to Dismiss (Doc. 53). Simultaneously, Plaintiff filed her Motion for Leave to File Seventh Amended Complaint (Doc. 54) and a Proposed Seventh Amended Complaint. (Doc. 55) Defendants' Motion to Dismiss is fully briefed and ripe for review.

III. PLAINTIFF'S MOTION SHOULD BE DENIED BECAUSE, DESPITE HAVING MANY OPPORTUNITIES TO STATE A VIABLE CLAIM, HER PROPOSED SEVENTH AMENDED COMPLAINT STILL FAILS TO DO SO.

Rule 15(a), Federal Rules of Civil Procedure, states that, after a responsive pleading has been served, a party "may amend the party's pleading only by leave of court or by written consent of the adverse party" Fed. R. Civ. P. 15(a). The decision to grant or deny leave to amend lies within the sound discretion of the district court. *See Morrison v. McNeil*, No. 5:08-cv-253, 2009 U.S. Dist. LEXIS 85561, at *29 (N.D. Fla. Sept. 17, 2009) (noting that despite the liberal amendment standard, leave to amend "is by no means guaranteed"); *Pilkington v. United*

Airlines, Inc., 158 F.R.D. 508, 509 (M.D. Fla. 1994) (“leave to amend . . . is by no means automatic”).

Leave to amend should be denied when the amendment would be futile. *See Foman v. Davis*, 371 U.S. 178 (1962); *Halliburton & Assoc., Inc. v. Henderson, Few & Co.*, 774 F.2d 441, 443 (11th Cir. 1985). Amendment is futile when the proposed amended complaint “would not survive a motion to dismiss.” *Christman v. Walsh*, 416 F. App’x 841, 844 (11th Cir. 2011). While Plaintiff claims she has added “newly discovered” facts that arose after Defendants filed the Motion to Dismiss, this is largely a misstatement.¹ As set forth below, granting Plaintiff leave to amend (yet again) would be futile because Plaintiff’s proposed Seventh Amended Complaint would not survive a motion to dismiss.

Furthermore, “[a] court should deny leave to amend when a plaintiff repeatedly has failed to cure deficiencies through amendment.” *See Schooley v. Option One Mortg. Corp.*, No. 5:21 cv 219 AW/MJF, 2022 U.S. Dist. LEXIS 180579, at *15 (N.D. Fla. Sept. 7, 2022) (citing *Blackburn v. Shire US Inc.*, 18 F.4th 1310, 1317-18 (11th Cir. 2021)). This principle is firmly established in Eleventh

¹ The only new allegations that arose after Defendants filed their Motion to Dismiss relate to whether Plaintiff exhausted administrative remedies with respect to the retaliation claims in Count II. All other changes Plaintiff made to the factual allegations relate to her employment and termination of employment, which clearly predate Defendants’ Motion to Dismiss. Further, Plaintiff did not incorporate by reference any of the factual allegations in Paragraphs 1-93 of the proposed Seventh Amended Complaint into any of the Counts therein. Thus, they are not part of the Counts and should not be considered in determining whether Plaintiff has stated a claim.

Circuit precedent, which recognizes that “[r]epeated failures to cure deficiencies can serve as an independent ground for denying leave to amend a complaint.” *Estate of Hand v. Fla. Dep’t of Corr.*, No. 21 11542, 2023 U.S. App. LEXIS 328, at *24 (11th Cir. Jan. 6, 2023) (citing *McKinley v. Kaplan*, 177 F.3d 1253, 1258 (11th Cir. 1999)). Here, Plaintiff has been afforded multiple opportunities to amend her complaint yet has consistently failed to remedy the same fundamental pleading defects. Rather than curing those deficiencies with additional factual allegations, with each successive amendment, Plaintiff attempts to manufacture additional language and buzzwords without providing any factual basis to support such contentions. Plaintiff appears to be using Defendants’ prior Motions to Dismiss as a roadmap, repackaging theories with newly added jargon in an effort to merely clear the threshold pleading standard. This iterative process of amendment—untethered to any newly discovered facts—underscores that Plaintiff is not correcting pleading defects, but instead attempting to plead around Defendants’ Motion to Dismiss. Accordingly, because the amendments do not cure the reasons for dismissal raised in Defendants’ Motion to Dismiss, Plaintiff’s Motion should be denied.

A. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count I – Gender Discrimination Under Title VII.

In Count I, Plaintiff purports to assert a claim of gender discrimination under Title VII against Amentum. Amentum moved to dismiss Count I of the Sixth

Amended Complaint for failure to state a claim because (1) Plaintiff fails to plead an actionable adverse employment action, and (2) Plaintiff fails to plead any factual allegations (as compared to conclusory assertions) that any purported conduct was taken because of her gender. Plaintiff has failed to add any meaningful additional factual allegations in Count I of the proposed Seventh Amended Complaint. Therefore, amendment would be futile.

To state a claim of gender discrimination under Title VII, Plaintiff must allege: (1) she belongs to a protected class; (2) she was subjected to an adverse employment action; (3) she was qualified to perform the job in question; and (4) she was treated less favorably than a similarly situated employee outside her protected class. *Lewis v. City of Union City, Ga.*, 918 F.3d 1213, 1220-21 (11th Cir. 2019). “To sufficiently allege a Title VII discrimination claim, an employee ‘must show some harm respecting an identifiable term or condition of employment.’” *Shed v. Univ. of S. Fla. Bd. of Trs.*, No. 23-13746, 2025 U.S. App. LEXIS 182618, at *11 (11th Cir. May 30, 2025) (quoting *Muldrow v. City of St. Louis, Missouri*, 601 U.S. 346, 354-55 (2024)). “The Supreme Court has stressed that Title VII provides no protection against ‘those petty slights or minor annoyances that often take place at work and that all employees experience.’” *Ricks v. Indyne, Inc.*, 552 F. Supp. 3d 1248, 1254 (N.D. Fla. 2021) (quoting *Harrison v. Belk Inc.*, 748 F. App’x 936, 943 (11th Cir. 2018)).

Here, Plaintiff fails to allege any actionable adverse employment action. Instead, she relies on general references to being treated “less favorably” in terms of job assignments in that she alleges that she took on “a heavier workload and time-consuming tasks.” (Doc. 55 at ¶ 96) These allegations do not constitute an adverse employment action under Title VII. *See Gillespie v. City of Orlando*, No. 6:17-cv-635-Orl-41GJK, 2018 U.S. Dist. LEXIS 19194, at *8 (M.D. Fla. Feb. 6, 2018) (“Plaintiff’s allegations of increased workload, without more, are insufficient to demonstrate that he suffered an adverse employment action”). While Plaintiff alleges in a conclusory manner that she experienced a “loss of wages” and “loss of promotion opportunities” (Doc. 55 at ¶ 99), Plaintiff pleads no facts explaining how a heavier workload or any action resulted in a “loss of wages.” Similarly, Plaintiff’s reference to “loss of promotion opportunities” is entirely speculative. She identifies no promotion, no application, no qualifications, no comparator, and no decisionmaker. These gaps underscore the speculative nature of her allegations and further demonstrate the absence of any plausible adverse employment action. Simply put, Plaintiff has failed to allege any facts to show a change in the terms, conditions, or privileges of employment. As such, she has failed to satisfy this basic pleading requirement. *See Davis v. Orange Cty.*, No. 6:22-cv-2222-PGB-UAM, 2025 U.S. Dist. LEXIS 134506 (M.D. Fla. Mar. 30, 2025) (“Even if Plaintiff alleged ‘some

harm,’ Plaintiff fails to allege ‘some harm respecting an identifiable term or condition of employment.’”).

Further, Count I omits any factual allegations sufficient to give rise to an inference of a discriminatory gender-based motive. Plaintiff attempts to bolster her prior allegations by asserting—in conclusory fashion—that male coworkers were not subject to “scrutiny and character attacks.” (Doc. 55 at ¶ 97) However, Plaintiff still fails to connect her gender to these allegations. Plaintiff’s attempts to attribute discriminatory motive to the use of terms such as “aggressive” or “attitude” is, likewise, unsupported. These are not “gender-coded” terms. Plaintiff alleges no facts showing that these terms were used in a gendered manner or that they were connected to any adverse employment action.

Further, her assertion that “gender-coded language” was used by Xander is wholly unsupported by the allegations in the Seventh Amended Complaint. Rather, Plaintiff alleges Xander used the terms “aggressive” and “attitude” in describing communications with another employee. (Doc. 55 at ¶ 97) Additionally, Plaintiff fails to allege that Xander took any employment action against Plaintiff and, thus, comments he is alleged to have made are not relevant to show discriminatory animus.

Such conclusory assertions, unsupported by factual allegations connecting any purported conduct to discriminatory animus, are insufficient to state a claim for

gender discrimination. Accordingly, allowing amendment of Count I would be futile because the proposed Seventh Amended Complaint fails to cure the deficiencies requiring dismissal of Count I for failure to state a claim.

B. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count II – Retaliation Under Title VII.

In Count II, Plaintiff purports to assert claims of retaliation under Title VII against Amentum. Amentum moved to dismiss Count II of the Sixth Amended Complaint because (1) Plaintiff did not plead an actionable materially adverse employment action or a causal connection between any purported employment action and alleged statutorily protected conduct, and (2) Plaintiff failed to allege exhaustion of administrative remedies with respect to her retaliatory termination claim. To cure these pleading deficiencies, Plaintiff seeks to add allegations that (1) Amentum “fabricated” disciplinary warnings, and (2) she exhausted administrative remedies. Even if Plaintiff were permitted to amend the Sixth Amended Complaint to add allegations that she exhausted administrative remedies, Count II of the proposed Seventh Amended Complaint still fails to state a claim and, therefore, amendment would be futile.

To state a claim of retaliation under Title VII, Plaintiff must allege: (1) she engaged in statutorily protected conduct, (2) she was subjected to an adverse employment action, and (3) there was a causal relationship between the two events.

Tolar v. Bradley Arant Boult Cummings, LLP, 997 F.3d 1280, 1289 (11th Cir. 2021).

To be actionable, an employment action must be materially adverse as viewed by a reasonable person. *See Robinson v. Holman*, No. 23-11735, 2024 U.S. App. LEXIS 13690, at *4-5 (11th Cir. June 6, 2024) (quoting *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 68 (2006)). In other words, the employment action must be serious enough to dissuade a reasonable employee from engaging in protected conduct. *Id.*

Plaintiff's allegation that she received disciplinary warnings fails to state a claim of retaliation because disciplinary warnings alone are not a materially adverse employment action. Courts consistently hold that written warnings, without accompanying consequences, do not constitute adverse employment actions. *See Barnett v. Athens Reg'l Med. Ctr., Inc.*, 550 F. App'x 711, 713 (11th Cir. 2013); *see also Robinson v. HCA Healthcare Servs. Fla., Inc.*, No. 8:24-cv-275-TPB-AEP, 2024 U.S. Dist. LEXIS 153308, at *4 (M.D. Fla. Aug. 27, 2024) (“[A] plaintiff must show a material adversity — Title VII . . . does not set forth a general civility code for the American workplace, and petty slights, minor annoyances, and simple lack of good manners will not rise to the level of materially adverse actions for retaliation purposes.”) (internal quotations omitted) (quoting *Burlington N. & Santa Fe Ry. Co.*, 548 U.S. at 67 (2006)).

With respect to her termination claim, conclusory labels, such as “fabricated” and “purely pretextual,” fail to demonstrate that her termination would not have occurred “but for” Plaintiff’s alleged protected conduct. A retaliation claim requires more than a conclusory allegation of pretext; it requires facts plausibly suggesting that retaliation was the but-for cause of the adverse action. *See Duncan*, 734 F. App’x at 641. Plaintiff pleads none. She offers no factual basis showing retaliatory animus and no nonconclusory facts undermining the legitimacy of Amentum’s decisions. Plaintiff’s retaliation claims amount to a formulaic recitation of the elements of retaliation supported by speculation and conclusory allegations. Accordingly, given Plaintiff’s repeated amendments and continued failure to cure these deficiencies, further amendment would be futile and Plaintiff’s Motion should be denied.

C. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count III - Hostile Work Environment (“HWE”) Under Title VII.

Plaintiff purports to assert a sex-based HWE claim against Amentum in Count III. Amentum moved to dismiss Count III of the Sixth Amended Complaint because the allegations: (1) fall woefully short of alleging harassment that was sufficiently severe or pervasive to alter the terms and conditions of Plaintiff’s employment and create a discriminatorily abusive working environment, and (2) fail to make any connection between Plaintiff’s gender and the alleged harassment. To cure these pleading deficiencies, Plaintiff now—after at least ten prior attempts—seeks to add

allegations that Amentum removed the office for the entire department in which Plaintiff worked and “dismissed” her alleged reports of safety violations. (Doc. 55 at ¶ 105) Clearly, these are not “newly discovered” factual allegations, and they should have been pled from the outset if Plaintiff truly contends that they are relevant to Count III. Even if Plaintiff were permitted to amend the complaint to add these allegations, Count III of the proposed Seventh Amended Complaint still fails to state a claim for the same reasons as the Sixth Amended Complaint. Therefore, amendment would be futile.

To state an HWE claim, Plaintiff must allege:

(1) that [s]he belongs to a protected group; (2) that [s]he has been subject to unwelcome harassment; (3) that the harassment must have been based on a protected characteristic of the employee . . .; (4) that the harassment was sufficiently severe or pervasive to alter the terms and conditions of employment and create a discriminatorily abusive working environment; and (5) that the employer is responsible for such environment under a theory of either vicarious or direct liability.

Miller v. Kenworth of Dothan, Inc., 277 F.3d 1269, 1275 (11th Cir. 2002). Courts look at multiple factors when determining whether the plaintiff’s allegations satisfy the “severe or pervasive” requirement: “(1) the frequency of the conduct; (2) the severity of the conduct; (3) whether the conduct is physically threatening or humiliating, or a mere offensive utterance; and (4) whether the conduct unreasonably interferes with the employee’s job performance.” *Mendoza v. Borden, Inc.*, 195 F.3d 1238, 1245 (11th Cir. 1999) (citations omitted). The requirement that the alleged

harassment be “severe or pervasive” is a high standard that must amount to “extreme” discriminatory conduct that mere unpleasant conduct cannot satisfy. *See Godoy v. Habersham Cnty*, 211 F. App’x 850, 854 (11th Cir. 2005).

Plaintiff’s proposed amended Count III is devoid of any allegations that the purported conduct was frequent, severe, physically threatening, humiliating, or that it unreasonably interfered with Plaintiff’s job performance. Instead, Plaintiff alleges only that she was cursed and shouted at on a single occasion, she was “falsely” accused of cursing and told that her inquiry “doesn’t matter,” the entire NDI department lost its office space, and her alleged safety reports were “dismissed.” (Doc. 55 at ¶ 105) Under well-established Eleventh Circuit precedent, these isolated allegations – wholly unconnected to Plaintiff’s gender – cannot, as a matter of law, support a viable HWE claim. *See Uppal v. Hosp. Corp. of Am.*, 482 F. App’x 394, 397 (11th Cir. 2012) (affirming dismissal of plaintiff’s sex-based HWE claim because “a single incident of harassing conduct cannot support a hostile work environment claim”); *Pratt v. Compass Grp. USA, Inc.*, No. 24-CV-81308-RLR, 2024 U.S. Dist. LEXIS 212102, at *3–*4 (S.D. Fla. Nov. 21, 2024) (dismissing sex-based HWE claim where the plaintiff alleged only “one offensive remark with specificity”). Far more serious allegations have been dismissed for failure to state an HWE claim. *See, e.g., Walsh v. City of Ocala*, No. 5:18-cv-402-Oc-30PRL, 2019 U.S. Dist. LEXIS 122484, at *12–13 (M.D. Fla. June 17, 2019) (dismissing

complaint containing allegations of eight episodes in which, among other things, a supervisor made explicit sexual comments and wrestled with a female employee to get her cell phone to see nude photographs of her and “shoved her face in his groin simulating her performing oral sex on him”); *Tiberi v. Cent. Broward Water Control Dist.*, No. 22-60766-CIV-SINGHAL, 2023 U.S. Dist. LEXIS 53976, at *11-*12 (S.D. Fla. Mar. 28, 2023) (dismissing sex-based HWE claim alleging continued comments over a span of approximately six months and collecting cases of courts dismissing HWE claims based on conduct that was far more serious).

Additionally, Plaintiff’s proposed amended Count III is fatally deficient because it fails to allege any facts that plausibly connect the purported harassment to her gender. It contains no allegations of statements, conduct, or surrounding circumstances suggesting that the alleged treatment was motivated by Plaintiff’s gender. The only reference Plaintiff makes to purported sex-based harassment is a single conclusory assertion that “Plaintiff was subjected to unwelcome harassment because of her sex” (Doc. 55 at ¶ 104) Such a bare, formulaic allegation is insufficient to state a plausible claim and cannot substitute for well-pleaded facts showing discriminatory animus.

In sum, Plaintiff’s proposed amendments to Count III are wholly insufficient to withstand a motion to dismiss. Because Plaintiff’s proposed amended allegations

do not, as a matter of law, state a HWE claim, allowing amendment to Count III would be futile and Plaintiff's Motion should be denied.

D. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count IV - Defamation.

Count IV is pled against Velasquez, Xander, Thomas, and Hughes. These Defendants moved to dismiss Count IV of the Sixth Amended Complaint because it fails to state a claim of defamation because Plaintiff does not – and cannot – allege publication *to a third party*. Plaintiff has failed to add any meaningful additional factual allegations in Count IV of the proposed Seventh Amended Complaint. Therefore, amendment would be futile.

Just as she does in her Sixth Amended Complaint, in the proposed Seventh Amended Complaint, Plaintiff alleges:

- Thomas and Hughes “published a written memorandum to Amentum management stating Plaintiff took ‘unauthorized leave’”;
 - Velasquez accused Plaintiff of cursing during a meeting, although she does not identify with any specificity to whom, how, or why this “accusation” was made; and
 - Xander stated that “Plaintiff cursed too,” again without identifying with any specificity to whom, when, how, or why this statement was allegedly made.
- (Doc. 55 at ¶ 107)

Just as she does in her Sixth Amended Complaint, in the proposed Seventh Amended Complaint, in conclusory fashion, Plaintiff asserts that these alleged statements were “communicated” to Amentum “management and coworkers” and placed in Plaintiff’s personnel file. (Doc. 55 at ¶ 108)

Thus, just as Plaintiff’s Sixth Amended Complaint fails to state a claim of defamation, Plaintiff’s proposed Seventh Amended Complaint fails to state a claim of defamation because Plaintiff does not – and cannot – allege publication *to a third party*.

Under Florida law, defamation requires “the unprivileged publication of false statements which naturally and proximately result in injury to another.” *Hoch v. Loren*, 273 So. 3d 56, 57 (Fla. 4th DCA 2019) (quoting *Wolfson v. Kirk*, 273 So. 2d 774, 776 (Fla. 4th DCA 1973)). “Publication of defamatory matter is communication of the statement *to a third person*.” *Id.* (emphasis supplied). Thus, “[a] defamatory statement does not become actionable . . . until it is published or communicated to a third person; statements made to the person alleging the defamation do not qualify.” *Am. Airlines, Inc. v. Geddes*, 960 So. 2d 830, 833 (Fla. 3d DCA 2007). Additionally, Florida courts have consistently held that communications between managerial employees of the same corporation do not constitute publication to a third party. *Hoch*, 273 So. 3d at 58 (“Florida courts have found no publication where . . . the defamatory statement was made by one managerial employee of the

corporation to another.”). Likewise, “a communication made in good faith on any subject matter by one having an interest therein, or in reference to which he had a duty, is privileged if made to a person having a corresponding interest or duty.” *Am. Airlines, Inc.*, 960 So. 2d at 833. This black letter principle of defamation law has repeatedly been applied to hold that statements about an employee were not actionable where, as here, they were allegedly shared only with coworkers who either participated in the investigation or had a legitimate interest in disciplinary matters. *See id.*

A cursory review of the factual allegations pled in support of Count IV in Plaintiff’s proposed Seventh Amended Complaint clearly shows that Plaintiff has not alleged publication to a third party. Rather, she alleges that statements were made to Amentum employees and placed in her personnel file. Without publication to a third party, Plaintiff cannot state a claim of defamation as a matter of law.

Additionally, Plaintiff still has not identified with any specificity the “management and coworkers” to whom allegedly defamatory statements were made. *See Buckner v. Lower Florida Keys Hospital District*, 403 So. 2d 1025, 1027–28 (Fla. 3d DCA 1981) (holding that a complaint alleging publication to “numerous third parties on numerous occasions” was deficient because it failed to identify the specific recipients of the alleged remarks); *Jackson v. North Broward County Hospital District*, 766 So. 2d 256, 257 (Fla. 4th DCA 2000) (affirming dismissal

because the plaintiff failed to “specifically identify the persons” to whom the defamatory comments were allegedly made). Plaintiff’s reliance on vague and undefined labels such as “coworkers” and “management” suffers from the same defect and fails to state a plausible claim

The only new “allegation” Plaintiff added to Count IV is a conclusory assertion that the “communications are not privileged.” (Doc. 55 at ¶ 109) This is wholly insufficient to withstand a motion to dismiss. Because Plaintiff’s proposed amendment to Count IV does not cure the pleading deficiencies in the Sixth Amended Complaint, allowing Plaintiff to amend Count IV would be futile and Plaintiff’s Motion should be denied.

E. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count V - Intentional Infliction of Emotional Distress (“IIED”).

Count V is pled against Amentum, Velasquez, Hughes, and Thomas. These Defendants moved to dismiss Count V of the Sixth Amended Complaint for failure to state a claim of IIED because Plaintiff’s allegations fall woefully short of Florida’s high standard for pleading an IIED claim. To cure this pleading deficiency, Plaintiff now— for the first time—seeks to add allegations that the purported “fabrication of disciplinary records” was “coordinated” and motivated by her race and gender, a theory not raised in any prior amendment. (Doc. 55 at ¶¶ 112-113) Clearly, these are not “newly discovered” factual allegations, and they should have been pled from the

outset if Plaintiff truly contends that they are relevant to Count V. Even if Plaintiff were permitted to amend the Sixth Amended Complaint to add these allegations, Count V of the proposed Seventh Amended Complaint still fails to state a claim for the same reasons as the Sixth Amended Complaint. Therefore, amendment would be futile.

To state an IIED claim, Plaintiff must allege that: (1) the conduct was intentional or reckless; (2) the conduct was outrageous; (3) the conduct caused emotional distress; and (4) the emotional distress was severe. *Williams v. Worldwide Flight Servs.*, 877 So. 2d 869, 870 (Fla. 3d DCA 2004) (citing *De La Campa v. Grifols Am., Inc.*, 819 So. 2d 940, 943 (Fla. 3d DCA 2002)). “Outrageous conduct is conduct that is ‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency.’” *Id.* (quoting *Metro. Life Ins. Co. v. McCarson*, 467 So. 2d 277, 278–79 (Fla. 1985)). The issue of whether a defendant’s activities “rise to the level of being extreme and outrageous so as to permit a claim for intentional infliction of emotional distress is a legal question in the first instance for the court to decide as a matter of law.” *Rivera v. Am. Mem. Ctrs., Inc.*, No. 05-CV-21514, 2006 U.S. Dist. LEXIS 78364, at *11 (S.D. Fla. Oct. 27, 2006) (citing *Baker v. Fla. Nat’l Bank*, 559 So. 2d 284, 287 (Fla. 4th DCA 1990)).

“While there is no exhaustive or concrete list of what constitutes outrageous conduct, Florida common law has evolved an extremely high standard.” *Carey v.*

O'Reilly Auto Stores, Inc., No. 18-cv-81588, 2019 U.S. Dist. LEXIS 92487, at *25 (S.D. Fla. May 31, 2019) (quoting *Garcia v. Carnival Corp.*, 838 F. Supp. 2d 1334, 1339 (S.D. Fla. 2012)). Notably, “[a]llegations of verbal harassment, without significant physical attack, are insufficient to plead an intentional infliction of emotional distress claim.” *Id.* (quoting *Delk v. Bank of Am., N.A.*, No. 5:14-cv-469, 2016 U.S. Dist. LEXIS 1149, at *7 (M.D. Fla. Jan. 6, 2016) (citing *Bakar v. Bryant*, No. 13-21927-CIV, 2013 U.S. Dist. LEXIS 144972, at *2–3 (S.D. Fla. Oct. 7, 2013))). Indeed, the “touchstone” of an IIED claim is “the presence of relentless physical, as well as verbal, harassment.” *Id.* (quoting *DeShiro v. Branch*, No. 96-800-CIV-T-17E, 1996 U.S. Dist. LEXIS 16946, at *3 (M.D. Fla. Nov. 4, 1996)).

A cursory review of the allegations pled in support of the proposed amended Count V shows they are plainly insufficient to state a claim of IIED. Notwithstanding Plaintiff’s conclusory and baseless allegation that Defendants “coordinated” in fabricating disciplinary records, in evaluating whether Plaintiff can state a claim of IIED against each of the identified defendants, the Court should look at the allegations against that defendant and determine whether Plaintiff has alleged “outrageous conduct” as to that defendant. She plainly has not.

In an effort to make this analysis more difficult for the Court, Plaintiff has removed the name(s) of the Defendant(s) who she contends engaged in the alleged

behavior. However, comparing her allegations from the Sixth Amended Complaint with the Seventh Amended Complaint, Plaintiff alleges that:

- Hughes and Thomas “coordinated a fabrication of disciplinary records.”
- Velasquez was “shouting and cursing at [her] in a small equipment room.”
- Amentum terminated her after a deposition.

(Doc. 55 at ¶¶ 112-113)

Taken together or separately, these allegations do not rise to the level of “outrageous conduct” required under Florida law to sustain an IIED claim. *See, e.g., Leuzzi v. Fawcett Mem’l Hosp., Inc.*, No. 2:25-cv-396-SPC-DNF, 2025 U.S. Dist. LEXIS 481857, at *13 (M.D. Fla. Oct. 16, 2025) (regarding an IIED claim: “Florida courts have found allegations of false statements insufficient to state a claim.”); *Williams*, 877 So. 2d at 870-71 (finding that the alleged conduct, including repeated use of racial slurs, issuance of unfounded disciplinary actions, creation of false disciplinary records to justify termination, and placement in hazardous work assignments, fell short of meeting the threshold of extreme and outrageous behavior required to sustain an IIED claim).

Additionally, Plaintiff’s proposed Count V continues to fail to allege any facts sufficient to show “severe emotional distress.” “A plaintiff attempting to allege the

‘severe emotional distress’ element of an IIED claim must allege that [s]he suffered distress so severe that no reasonable [person] could be expected to endure it.” *Grasso v. Det. Tyler Varner*, No. 4:21-cv-310-WS-MJF, 2023 U.S. Dist. LEXIS 41655, at *23–24 (N.D. Fla. Jan. 30, 2023), report and recommendation adopted by 2023 U.S. Dist. LEXIS 40254 (N.D. Fla. Mar. 10, 2023). Here, Plaintiff’s allegations of emotional distress remain largely unchanged from the Sixth Amended Complaint, except that she removed “sleeplessness” and added “requiring medical leave.” These revisions remain insufficient to meet the “severe emotional distress” element of an IIED claim.

Lastly, proposed amended Count V against Amentum fails because Plaintiff continues to allege no facts supporting vicarious liability.

In short, Plaintiff’s proposed amended Count V does nothing more than assert “threadbare recitals” of the elements of the cause of action and “mere conclusory statements.” This is wholly insufficient to withstand a motion to dismiss. Because Plaintiff’s proposed amendment to Count V does not cure the pleading deficiencies in the Sixth Amended Complaint, allowing Plaintiff to amend Count V would be futile and Plaintiff’s Motion should be denied.

F. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count VI - Civil Conspiracy Under 42 U.S.C. § 1985(3).

Plaintiff's proposed amendments to the civil conspiracy claim asserted against the individual defendants under 42 U.S.C. § 1985(3) in Count VI do not cure the pleading deficiencies, Count VI fails as a matter of law, and Plaintiff's Motion should be denied as futile.

To state a claim under 42 U.S.C. § 1985(3), Plaintiff must allege: (1) the defendants engaged in a conspiracy; (2) the conspiracy's purpose was to directly or indirectly deprive a protected person or class of the equal protection of the laws, or equal privileges and immunities under the laws; (3) a conspirator committed an act to further the conspiracy; and (4) as a result, the plaintiff suffered injury to either person or property, or was deprived of a right or privilege of a citizen of the United States. *Johnson v. City of Fort Lauderdale*, 126 F.3d 1372, 1379 (11th Cir. 1997). Where, as here, the alleged § 1985(3) conspirators are private actors, Plaintiff must demonstrate that the conspiracy was aimed at rights constitutionally protected against private impairment. *Bray v. Alexandria Women's Health Clinic*, 506 U.S. 263, 274 (1993); *Park v. City of Atlanta*, 120 F.3d 1157, 1162 (11th Cir. 1997). These rights include only select "serious constitutional right[s]." *Cook v. Randolph County*, 573 F.3d 1143, 1157 (11th Cir. 2009) (quotation omitted). The only rights the Supreme Court has expressly declared enforceable against private conspirators under § 1985(3) are the right to interstate travel and the right against involuntary servitude. *Jimenez v. Wellstar Health Sys.*, 596 F.3d 1304, 1312 (11th Cir. 2010)

(citing *Bray*, 506 U.S. at 278). “Conversely, the Supreme Court has declared . . . the rights protected under Title VII, *Great Am. Fed. Sav. & Loan Ass’n v. Novotny*, 442 U.S. 366, 378, 99 S. Ct. 2345, 2352, 60 L. Ed. 2d 957 (1979), insufficient to form the basis of § 1985(3) actions against private conspirators.” *Id.*

Here, Plaintiff’s proposed amendment still fails to allege that the purported conspiracy was aimed at rights constitutionally protected against private impairment. While Plaintiff’s Seventh Amended Complaint now identifies the “right to provide unimpeded federal testimony” as the constitutional right she asserts underlies her 42 U.S.C. § 1985(3) claim, this is insufficient as a matter of law. (Doc. 55 at ¶ 117) It is well-established that “conspiracies to violate rights protected by Title VII cannot form the basis of § 1985(3) suits.” *Jimenez*, 596 F.3d at 1312. Accordingly, Count VI fails as a matter of law.

Further, the factual allegations set forth in proposed amended Count VI do not support her assertion that the individual defendants sought to impede her ability to provide testimony. First, Plaintiff identifies her termination as “evidence” that the individual defendants sought to interfere with her deposition. Plaintiff’s termination, however, was communicated to her *after* her deposition was complete. (Doc. 55 at ¶ 117) Thus, it could not have impeded her ability to provide testimony. Second, the Notice of Plaintiff’s Deposition was served on October 2, 2025. (Doc. 22-1) Accordingly, the other events alleged by Plaintiff in Paragraph 116 took place *before*

Plaintiff's deposition was set, so they could not have been done to impede her deposition (nor is it alleged that any individual defendant was even aware of her pending lawsuit against another party or whether or not her deposition would be taken in that case). Finally, Plaintiff does not allege that any conduct of any individual defendant actually impeded her deposition testimony.

Moreover, the intracorporate conspiracy doctrine continues to bar Plaintiff's claim in the proposed amended Count VI. Under the intracorporate conspiracy doctrine, a corporation's employees, acting as agents of the corporation, are deemed incapable of conspiring among themselves or with the corporation. This doctrine stems from basic agency principles that "attribute the acts of agents of a corporation to the corporation, so that all of their acts are considered to be those of a single legal actor." *Dussouy v. Gulf Coast Inv. Corp.*, 660 F.2d 594, 603 (5th Cir. 1981); *see also United States v. Hartley*, 678 F.2d 961, 970 (11th Cir.1982). The reasoning behind the intracorporate conspiracy doctrine is that it is not possible for a single legal entity consisting of the corporation and its agents to conspire with itself, just as it is not possible for an individual person to conspire with himself. *See Dickerson v. Alachua Cnty. Comm'n*, 200 F.3d 761, 767 (11th Cir. 2000); *Dussouy*, 660 F.2d at 603 (explaining that "the multiplicity of actors necessary to conspiracy" is negated when the agents' acts are attributed to the corporation and the corporation and its agents are viewed as a single legal actor); *Nelson Radio & Supply Co., Inc. v. Motorola*,

Inc., 200 F.2d 911, 914 (5th Cir. 1952) (stating that “[a] corporation cannot conspire with itself any more than a private individual can”). Here, the alleged conspirators are all employees or agents of Amentum. Her claim is, therefore, barred.

Additionally, proposed amended Count VI still pleads no facts showing the existence of any “agreement” among the individual defendants. Plaintiff identifies no communications, no coordinated plan, and no factual basis from which a conspiracy could be inferred. She offers only conclusory assertions that the individual defendants “acted in concert and reached an agreement” and “coordinated” their conduct. Courts have repeatedly held that 42 U.S.C. § 1985(3) claims cannot rest on “vague and conclusory allegations suggesting a conspiracy.” *See Price v. Collier*, No. 5:25-cv-50-AW-MJF, 2025 U.S. Dist. LEXIS 487506, at *13 (N.D. Fla. Aug. 5, 2025); *Fullman v. Graddick*, 739 F.2d 553, 556–57 (11th Cir. 1984).

Finally, Plaintiff’s assertion that Defendants acted outside the scope of their employment by allegedly fabricating records and concealing safety violations (Doc. 55 at ¶ 118) continues to be conclusory and unsupported by factual allegations.

Because Plaintiff’s allegations in proposed amended Count VI remain contrary to Supreme Court and Eleventh Circuit precedent, speculative, conclusory, and internally disconnected, they are insufficient to state a viable claim under 42

U.S.C. § 1985(3) as a matter of law. Allowing Plaintiff to amend Count VI would be futile and Plaintiff's Motion should be denied.

G. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count VII - Negligent Supervision.

Plaintiff's negligent supervision claim in Count VII is asserted against Amentum. Amentum moved to dismiss Count VII of the Sixth Amended Complaint for failure to state a claim because Plaintiff identifies no actionable tort recognized under Florida law in support of her negligent supervision claim. Plaintiff has failed to add any meaningful additional factual allegations in Count VII of the proposed Seventh Amended Complaint. Indeed, the claim continues to rest entirely on allegations that certain of the individual defendants engaged in "retaliatory and procedurally improper conduct." (Doc. 55 at ¶ 121) Thus, the Seventh Amended Complaint continues to suffer from the same pleading deficiency as the Sixth Amended Complaint. Therefore, amendment would be futile.

"To state a cause of action for negligent supervision . . . under Florida law the claimant must allege: (1) the existence of a relationship giving rise to a legal duty to supervise; (2) negligent breach of that duty; and (3) proximate causation by virtue of the breach." *Vaden v. Campbell*, No. 4:09cv12-RH/WCS, 2009 U.S. Dist. LEXIS 127138, at *5 (N.D. Fla. July 2, 2009) (citing *Albra v. City of Ft. Lauderdale*, 232 F. App'x 885, 888 (11th Cir. 2007)). Critically, "[a] claim for negligent supervision

and retention must be based on an injury resulting from a tort recognized under Florida law.” *Mighty v. Genesis Eldercare Rehab. Servs.*, No. 9:18-cv-80440-WPD, 2018 U.S. Dist. LEXIS 20117, at *5 (S.D. Fla. May 23, 2018) (citation omitted). Discrimination and retaliation are not recognized as independent torts that can support a claim of negligent supervision. *Id.* (granting the defendant’s motion to dismiss the plaintiff’s negligent supervision claims where the underlying allegations asserted that employees engaged in discrimination in violation of Title VII). Courts consistently dismiss negligent supervision claims where, as here, the plaintiff attempts to repackage statutory discrimination or retaliation theories into a tort claim. *See Freese v. Wuesthoff Health Sys., Inc.*, 2006 WL 1382111, at *8 (M.D. Fla. May 19, 2006).

Plaintiff’s allegations in the proposed amended Count VII do not identify any underlying tort committed by any employee. Instead, Plaintiff asserts in conclusory fashion – without any supporting factual allegations – that Amentum did not correct purported safety issues and mishandled disciplinary processes. (Doc. 55 at ¶ 120) None of these allegations describes a tort recognized under Florida law. They amount to nothing more than Plaintiff’s workplace grievances, which cannot serve as the predicate for a viable negligent supervision claim.

Additionally, Plaintiff continues to fail to allege that any employee acted outside the scope of employment, which is a required element. *See ACTS Ret.-Life*

Cmtys., Inc. v. Estate of Zimmer, 206 So. 3d 112, 115 (Fla. 4th DCA 2016). All conduct Plaintiff alleges—investigating safety issues and handling discipline—is squarely within the scope of supervisory employment functions.

Lastly, Plaintiff fails to plausibly allege proximate causation. In fact, the proposed Count VII is even more conclusory than Count VII in the Sixth Amended Complaint. Plaintiff asserts only that the “breach” was the proximate cause of her emotional distress and economic losses (Doc. 55 at ¶ 122), but she pleads no facts showing how any alleged deficiency caused any specific injury or loss. Such conclusory statements are insufficient to state a claim.

In sum, Plaintiff’s proposed amendment to Count VII does not cure the pleading deficiencies in the Sixth Amended Complaint. Plaintiff alleges no underlying cognizable tort, no conduct outside the scope of employment, and no plausible causation. This is wholly insufficient to withstand a motion to dismiss. Accordingly, allowing Plaintiff to amend Count VII would be futile and Plaintiff’s Motion should be denied.

H. Plaintiff Fails to Allege Any New Facts Warranting Amendment of the Operative Complaint As It Relates to Count VIII – Florida Whistleblower Act (“FWA”) Claim.

In Count VIII, Plaintiff purports to assert a claim of retaliation under the FWA against Amentum. Amentum moved to dismiss Count VIII of the Sixth Amended Complaint for failure to state a claim because Plaintiff has failed to allege any “law,

rule, or regulation” which she contends Amentum violated or any “retaliatory personnel action” as defined by the FWA. Plaintiff has failed to add any meaningful additional factual allegations in Count VIII of the proposed Seventh Amended Complaint. Therefore, amendment would be futile.

Plaintiff continues to bring her FWA claim under section 448.102(3), Fla. Stat., which prohibits “retaliatory personnel action” against an employee because the employee has “[o]bjected to, or refused to participate in, any activity, policy, or practice of the employer which is in violation of a law, rule, or regulation.” Courts in this district have long held that this statutory language “plainly requires objection to an actual violation of law as opposed to merely a good-faith, objectively reasonable belief.” *Rivera v. Sodexo Ops., LLC*, No. 5:18-cv-248-TKW-MJF, 2019 U.S. Dist. LEXIS 250266, at *3-*4 (N.D. Fla. Oct. 29, 2019) (citing *Wallace v. Gainesville Hotel Mgmt., LLC*, 2015 U.S. Dist. LEXIS 186301, at *6–7 (N.D. Fla. June 9, 2015)). Plaintiff’s allegations do not satisfy this threshold requirement. Plaintiff does not identify the specific “law, rule, or regulation” allegedly violated or any factual allegations that could plausibly show that any violation actually occurred. Likewise, Plaintiff does not allege any “activity, policy, or practice of the employer.” Her conclusory assertions are insufficient under the FWA. *See Moore v. Pooches of Largo, Inc.*, No. 23-13568, 2025 U.S. App. LEXIS 12230, at *8-9 (11th Cir. May 20, 2025) (affirming the grant of a motion to dismiss, stating: “The FWA

requires that an employee object to an employer’s violation of a ‘law, rule, or regulation.’ Fla. Stat. § 448.102(3).”); *Rodriguez v. Maxim Healthcare Servs., Inc.*, No. 4:19cv66-MW/CAS, 2019 U.S. Dist. LEXIS 250216, at *7 (N.D. Fla. Oct. 3, 2019) (granting a motion to dismiss, stating that “Plaintiff must plead a violation of a ‘law, rule, or regulation’ and that the violation was an ‘activity, policy, or practice of the employer.’”).

Plaintiff’s allegations likewise continue to fail because she does not plausibly allege any qualifying “retaliatory personnel action” as defined by the statute. The FWA narrowly defines a retaliatory personnel action as “the discharge, suspension, or demotion by an employer of an employee or any other adverse employment action taken by an employer against an employee in the terms and conditions of employment.” Fla. Stat. § 448.101(5). The alleged conduct—being instructed not to communicate with coworkers about safety, being subjected to “gender-coded criticism,” and “fabricating ‘unauthorized leave’ records” (Doc. 55 at ¶ 124)—do not amount to discharge, suspension, demotion, or a materially adverse change in the terms and conditions of employment as required by § 448.101(5), Fla. Stat. Instead, they are precisely the type of “petty slights or minor annoyances that often take place at work and that all employees experience.” *Boan v. Fla. Dep’t of Corr.*, No. 23-13116, 2024 U.S. App. LEXIS 15061, at *9 (11th Cir. June 21, 2024); *see also Baptiste v. City of Miami*, No. 23-22670-CIV-DAMIAN/Louis, 2025 U.S. Dist.

LEXIS 64086, at *43 (S.D. Fla. Mar. 30, 2025) (“Conduct that falls short of an ultimate employment decision must meet some threshold level of substantiality to be cognizable”) (citing *Bell v. Ga.-Pacific Corp.*, 390 F. Supp. 2d 1182, 1188-89 (M.D. Fla. 2005)).

Because Plaintiff’s proposed amendments to Count VIII do not cure the pleading deficiencies in the Sixth Amended Complaint, allowing Plaintiff to amend Count VIII would be futile and Plaintiff’s Motion should be denied.

IV. CONCLUSION

Plaintiff’s Motion fails to explain why her proposed amendments cure the numerous reasons for dismissal set forth in Defendants’ Motion to Dismiss. Rather, the same pleading deficiencies from the Sixth Amended Complaint carry over into the proposed Seventh Amended Complaint. Plaintiff has had more than 10 attempts to plead viable claims, and she has failed to do so. Plaintiff has demonstrated that she cannot plausibly allege any claim against Defendants and should not be given another opportunity to amend her complaint.

WHEREFORE, Defendants respectfully request that the Court deny Plaintiff’s Motion for Leave to File Seventh Amended Complaint and grant any other relief that the Court deems just and proper.

CERTIFICATE OF COMPLIANCE WITH N.D. FLA. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Response totals 7,996 words.

DATED this 27th day of March, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 27th day of March 2026, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson

[REDACTED]
[REDACTED]
[REDACTED]

Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger